

OPTION AGREEMENT

THIS DOCUMENT IS IMPORTANT AND SHOULD BE KEPT IN A SAFE PLACE

THIS OPTION AGREEMENT is made the 31st of March 2022

BETWEEN

- (1) Open Utility Limited (registered number 08384033) whose registered office is at 35 Holland Grove, London, SW9 6ER (**Company**); and
- (2) Oliver Yerbury-Hodgson of Ground Floor Flat, 28 Crewdson Road, London, SW9 0LJ, (**Option Holder**).

BACKGROUND

- (A) This option agreement is made supplemental to the rules of The Open Utility Limited EMI Share Option Scheme (**Scheme**). Any words or expressions used in this option agreement and defined by the Scheme shall bear the same meaning in this agreement.
- (B) The Company intends to grant an EMI Option to the Option Holder.
- (C) The Option is granted under Schedule 5 ITEPA 2003.

AGREED TERMS

1. Grant

The Company grants an EMI Option to the Option Holder and the Option Holder agrees to be bound in all respects by the provisions of the Scheme and accepts the grant on the terms set out in their agreement.

2. Terms of the Scheme

- 2.1 Under the terms of the Scheme the Option Holder may acquire the number of ordinary shares (**Shares**) in the Company stated in clause 6.1(a) at the Option Price set out in clause 6.1(b).
- 2.2 The EMI Option is granted and exercisable subject to the terms and conditions set out in the Scheme and in this Option Agreement.

3. Restrictions

Any Shares allotted or transferred pursuant to the exercise of the EMI Option are subject to:

- (a) the articles of association of the Company (as amended from time to time) a copy of which is annexed to this Option Agreement; and

- (b) the terms of an amended and restated shareholders' agreement dated 11 December 2020 made between the members of the Company and the Company;
- (c) any necessary consents of any governmental or other authorities under any enactments from time to time in force.

4. Non transferable

The EMI Option is personal to the Option Holder and is not transferable, assignable or chargeable.

5. Exercise

- 5.1 The EMI Option may be exercised at any time to the extent that it has Vested.
- 5.2 The EMI Option shall not be exercisable on or after the 10th Anniversary of the date of grant, as set out in clause 6.1(c).

6. Grant

- 6.1 The details of the grant are as follows:

(a)	Number of Shares subject to the Option	60
(b)	Option price per Share	£18.23
(c)	Date of grant	31/03/2022
(d)	Vesting Commencement Date	21/06/2021

- 6.2 The exercise of the Option shall be conditional upon the Option Holder making good any Tax Liability in relation to the Option, or entering into arrangements acceptable to the Company in respect of such Tax Liability, in accordance with Rule 10.5 of the Scheme.

- 6.3 The Option shall Vest as follows:

- (a) 25% of the Shares shall Vest on the first anniversary of the Vesting Commencement Date; and
- (b) the remaining 75% of the Shares shall Vest monthly in equal instalments over the following three years, so that the Option shall be fully Vested on the fourth anniversary of the Vesting Commencement Date;

and the number of Shares which Vest shall be rounded up to the nearest whole number of Shares.

7. Power of attorney

- 7.1 The Option Holder hereby appoints the Company (acting by any of its directors from time to time) as the Option Holder's attorney to execute any Section 431 Election in the Option Holder's name and on the Option Holder's behalf.

- 7.2 The Company may appoint one or more persons to act as substitute attorney(s) for the Option Holder and to exercise one or more of the powers conferred on the Company by the power of attorney set out in this clause 7, other than the power to appoint a substitute attorney. The Company may subsequently revoke any such appointment.
- 7.3 The power of attorney set out in this clause 7 shall be irrevocable, save with the consent of the Company, and is given by way of security to secure the interest of the Company (for itself and as trustee under this agreement on behalf of any employer or former employer of the Option Holder) as a person liable to account for or pay any relevant Tax Liability.
- 7.4 The Option Holder declares that a person who deals in good faith with the Company or any substitute attorney as the Employee's attorney appointed under this clause 7 may accept a written statement signed by that person to the effect that this power of attorney has not been revoked as conclusive evidence of that fact.

8. Working Time Declaration

The Option Holder hereby declares, pursuant to the requirement set out in paragraph 44(5)(c) of Schedule 5, that he works for the Company or for a subsidiary of the Company for:

- (a) at least 25 hours a week ☒
- (b) 75% of his working time ☒

and therefore satisfies the Committed Time requirement in paragraph 26 of Schedule 5.

This option agreement has been executed as a deed and unconditionally delivered on the date first above written.

SIGNED as a DEED
by **Open Utility Limited**
acting by James Johnston

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James Johnston
James Johnston (Mar 31, 2022 14:16 GMT+1)

Director

Signature of Witness:

Lorna Wright
Lorna Wright (Mar 31, 2022 15:01 GMT+1)

Name of Witness:

Lorna Wright

Address:

62 Telford Place, Chelmsford, Essex, CM1 7QZ

Occupation:

Operations Manager

SIGNED as a DEED
By Oliver Yerbury-Hodgson

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Oliver Yerbury-Hodgson
Oliver Yerbury-Hodgson (Mar 31, 2022 13:17 GMT+1)

Signature of Witness:



Name of Witness:

Lorna Wright

Address:

62 Telford Place, Chelmsford, Essex, CM1 7QZ

Occupation:

Operations Manager

NOTE: The Option Holder must ensure that they have ticked the appropriate option under the Working Time Declaration in paragraph 8 above.

The Company shall retain the original signed and dated option agreement and give a copy to the Option Holder within 7 days to satisfy paragraph 44(5)(b) of Schedule 5 or two copies of the option agreement shall be signed, one for the Company and one for the Option Holder.

Annex 1

Restrictions attaching to shares

The restrictions attaching to the ordinary shares are set out in the Articles of Association but, specifically, are as follows:

Article number	Summary of relevant restriction
5 & 6	On a liquidation or a return of capital or share sale the surplus assets or proceeds of sale shall be applied amongst the holders of shares in an order of priority, there is a preference amount which will be paid to the A Ordinary Shareholders before ordinary shareholders.
9	If new shares are issued by the Company anti dilution provisions apply which mean that further A Ordinary Shares may be issued, this does not apply to ordinary shareholders.
11	No ordinary shares shall be allotted to any employee unless such person has entered into a joint section 431 ITEPA election if so required by the Company.
12	No share may be transferred unless the transfer is made in accordance with the Articles and the Directors may refuse to register a transfer if certain conditions apply.
13	Restricted transfer provisions meaning that shares can only be transferred in the permitted transfer situations described in the Articles
14	Pre-emption provisions meaning that the shares have to be offered in an order of priority before being transferred
15	Specific provisions relating to the valuation of shares apply if no Transfer Price can be agreed.
18	Tag along provisions which require a proposed purchaser acquiring a controlling interest in the Company to make a mandatory offer to shareholders to acquire all of the shares
19	An employee who is proposing to sell their shares is required to give a co-sale notice to the holders of A ordinary shares
20	Drag along provisions which require shareholders to sell and transfer their shares

In addition, further restrictions attaching to the ordinary shares are set out in the amended and restated shareholders' agreement (a copy of which is attached to this Option Agreement) and which may apply to you if the Board determines that you should complete a Deed of Adherence, as follows:

Clause number	Summary of relevant restriction
10	Shareholders shall exercise their voting rights and powers of control to procure that no Group Company shall effect any matters requiring consent of the investor or investor director

11	The shareholders shall retain or sell their shares to the extent required by the applicable exchange on an IPO
12	Restrictions on the transfer or other disposal of shares except as required or permitted by the Articles or shareholders' agreement

Annex 2

Company's articles of association